

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

HOUSE BILL 3585

By: Harris

AS INTRODUCED

An Act relating to courts; amending 20 O.S. 2021, Section 106.4, as amended by Section 1, Chapter 100, O.S.L. 2023 (20 O.S. Supp. 2025, Section 106.4), which relates to duties of court reporters; expanding means by which a court reporter can record; removing prohibition on certification of persons who rely exclusively upon a steno-mask; clarifying use of proceedings electronically recorded when no court reporter is available; updating outline; amending 20 O.S. 2021, Section 106.9, as last amended by Section 1, Chapter 263, O.S.L. 2023 (20 O.S. Supp. 2025, Section 106.9), which relates to court reporter salaries; increasing salary; adding certifications to additional compensation payments; removing certain continuing education requirement; authorizing Supreme Court to direct continuing education requirements; suspending additional compensation payment if lapse of certification; amending 20 O.S. 2021, Section 1503, which relates to examination of court reporters; changing methods for which a certification can be issued; and amending 20 O.S. 2021, Section 125, as last amended by Section 4, Chapter 316, O.S.L. 2025 (20 O.S. Supp. 2025, Section 125), which relates to secretary-bailiff salaries; increasing salary; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 20 O.S. 2021, Section 106.4, as
2 amended by Section 1, Chapter 100, O.S.L. 2023 (20 O.S. Supp. 2025,
3 Section 106.4), is amended to read as follows:

4 Section 106.4. A. 1. The court reporter shall make a full
5 reporting by means of ~~stenographic hand,~~ steno-mask ~~or,~~ stenographic
6 machine notes, or any other method of reporting authorized by the
7 Supreme Court, or a combination thereof, of all proceedings,
8 including the statements of counsel and the court and the evidence,
9 in trials and other judicial proceedings to which the court reporter
10 is assigned by the appointing judge unless excused by the judge who
11 is trying the case with the consent of the parties to the action.
12 ~~Nothing herein contained shall be construed to authorize the~~
13 ~~certification of persons as certified shorthand reporters who rely~~
14 ~~exclusively upon the steno-mask for reporting judicial proceedings,~~
15 ~~except as provided by law.~~ A refusal of the court to permit or to
16 require any statement to be taken down by the court reporter or
17 transcribed after being taken down, upon the same being shown by
18 affidavit or other direct and competent evidence, to the Supreme
19 Court, or other appellate court, shall constitute a denial of due
20 process of law. The court reporter may use an electronic instrument
21 as a supplementary device.

22 2. In any trial, hearing, or proceedings, if no court reporter
23 is available to the assigned judge either in person or remotely:
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- 1 a. the judge before whom the matter is being heard may
2 order the proceedings electronically recorded and a
3 trial or proceedings may proceed without the necessity
4 of a court reporter being present. ~~Provided that if~~
5 ~~an official transcript is ordered then it shall be~~
6 ~~prepared by the official court reporter~~ Any party may
7 order a transcript; provided that, for use in any
8 subsequent trial, hearing, proceeding, or appeal, only
9 official transcripts prepared by an official court
10 reporter are performed for any purpose, or
11 b. with approval of the judge, the parties may stipulate
12 to the use of a freelance reporter and share the cost.
13 If ordered, the transcript shall be prepared by the
14 approved reporter and shall be considered the official
15 transcript for all purposes.

16 B. 1. Upon request of either party in a civil or criminal
17 case, the reporter shall transcribe the proceedings in a trial or
18 other judicial proceeding, or so much thereof as may be requested by
19 the party, certify to the correctness of the transcript, and deliver
20 the same in accordance with the rules of the Supreme Court. The fee
21 for an original transcript shall be set by the Supreme Court. Two
22 copies of the original transcript shall be furnished without
23 additional charge. Each page shall be at least twenty-five lines to
24 the page and typed no fewer than nine characters to the typed inch.

1 Each page shall be no more than double spaced and the margin on the
2 left side of the page shall be no more than one and one-half (1 1/2)
3 inches and the margin on the right side of the page shall be no more
4 than one-half (1/2) inch from the edge of the paper. The format for
5 all transcripts shall be prescribed by the Supreme Court. The fees
6 for making the transcript shall be paid in the first instance by the
7 party requesting the transcript and shall be taxed as costs in the
8 suit.

9 2. When the judge on his or her own motion orders a transcript
10 of the reporter's notes, the judge may direct the payment of charges
11 and the taxation of the charges as costs in such manner as the court
12 deems appropriate. In a criminal action, if the defendant shall
13 present to the judge an affidavit that the defendant intends in good
14 faith to take an appeal in the case and that a transcript of the
15 reporter's notes is necessary to enable the defendant to prosecute
16 the appeal, and that he or she has not the means to pay for the
17 transcript, the court, upon finding that there is reasonable basis
18 for the averment, shall order the transcript made at the expense of
19 the district court fund. The format preparation, delivery and
20 filing of transcripts to be used in civil and criminal appeals may
21 be regulated by the Supreme Court.

22 C. The court reporter shall file his or her records of the
23 evidence and the proceedings taken in any case with the clerk of the
24 court in which the case was tried.

1 D. To the extent that it does not substantially interfere with
2 the court reporter's other official duties, the judge by whom a
3 reporter is employed or to whom he or she is assigned may assign a
4 reporter to secretarial or clerical duties arising out of official
5 court operations.

6 SECTION 2. AMENDATORY 20 O.S. 2021, Section 106.9, as
7 last amended by Section 1, Chapter 263, O.S.L. 2023 (20 O.S. Supp.
8 2025, Section 106.9), is amended to read as follows:

9 Section 106.9. A. Each court reporter regularly engaged by the
10 district court, the Workers' Compensation Court of Existing Claims,
11 or the Corporation Commission shall be paid a salary pursuant to the
12 salary schedule established by the annual appropriation for the
13 district courts and Corporation Commission and in accordance with
14 the job description for the position to which appointed. For fiscal
15 year ~~2023~~ 2027 and each fiscal year thereafter, each court reporter
16 shall receive an annual salary of ~~Fifty-three Thousand Dollars~~
17 ~~(\$53,000.00)~~ Seventy Thousand Dollars (\$70,000.00).

18 B. In addition to their base salaries, official court reporters
19 who are certified or licensed shorthand reporters and those acting
20 shorthand reporters pursuant to paragraph 3 of Section 106.3B of
21 this title shall be paid annually the sum of Four Hundred Dollars
22 (\$400.00) for each year of service to the district court, the
23 Workers' Compensation Court, the Workers' Compensation Court of
24 Existing Claims and the Corporation Commission, with a maximum of

1 twenty (20) years of service only to be used for the purpose of
2 longevity, not to exceed Eight Thousand Dollars (\$8,000.00) per
3 year, payable monthly. For the purpose of payment for longevity,
4 "years of service" is defined as all years served as a certified or
5 licensed court reporter in the district court, the Workers'
6 Compensation Court, the Workers' Compensation Court of Existing
7 Claims and the Corporation Commission after June 30, 1978.
8 Longevity payments shall be made on July 1 of each year following
9 completion of the first year of service as defined herein.

10 C. In addition to their base salaries, official court reporters
11 eligible for longevity payments pursuant to subsection B of this
12 section shall be paid an annual equipment allowance of Three
13 Thousand Dollars (\$3,000.00). Payments for such allowance shall be
14 made on July 1 of each year following completion of the first year
15 of service as defined in subsection B of this section.

16 D. In addition to their base salaries, official court reporters
17 who are certified shorthand reporters shall be paid the following:

18 1. The sum of Two Thousand Dollars (\$2,000.00) per year,
19 payable monthly, to any official court reporter who ~~is a~~ holds one
20 or more of the following certifications:

21 a. Registered Professional Reporter (RPR), as recognized
22 by the ~~State Board of Examiners of Certified Shorthand~~
23 ~~Reporters. To qualify as a RPR, an official court~~
24

~~reporter shall have a~~ National Court Reporters Association,

b. Certified Verbatim Reporter, as recognized by the National Verbatim Reporters Association,

c. Certified Verbatim Reporter - Stenotype (CVR-S), as recognized by the National Verbatim Reporters Association, or

d. other certifications authorized by the Supreme Court

that demonstrate a proficiency level in reporting

testimony and proceedings of a speed of not less than

two hundred twenty-five (225) words per minute in taking

a question-and-answer-type dictation, two hundred (200)

words per minute in taking a jury charge, and one

hundred eighty (180) words per minute in taking literary

material. In addition, the individual shall pass a the

Oklahoma Written Knowledge Test with a score of at least

seventy percent (70%), all as determined by an

~~examination recognized by the Board,~~ and shall complete

~~thirty (30) hours of continuing education per three-year~~

~~cycle commencing at the date of recognition~~ as directed

by the Supreme Court;

2. The sum of Two Thousand Dollars (\$2,000.00) per year,
payable monthly, to any official court reporter who ~~is a~~ holds one
or more of the following certifications:

- 1 a. Registered Merit Reporter (RMR), as recognized by the
2 ~~State Board of Examiners of Certified Shorthand~~
3 ~~Reporters. To qualify as a RMR, an official court~~
4 ~~reporter shall have~~ National Court Reporters
5 Association,
- 6 b. Certificate of Merit (CM) or Certificate of Merit Skills
7 (CM-S), as recognized by the National Verbatim Reporters
8 Association, or
- 9 c. other certificates authorized by the Supreme Court that
10 demonstrates a proficiency level in reporting testimony
11 and proceedings of a speed of not less than two hundred
12 sixty (260) words per minute in taking a question-and-
13 answer-type dictation, two hundred forty (240) words per
14 minute in taking a jury charge, and two hundred (200)
15 words per minute in taking literary material. In
16 addition, the individual shall pass a the Oklahoma
17 Written Knowledge Test with a score of at least seventy
18 percent (70%), ~~all as determined by an examination~~
19 ~~recognized by the Board,~~ and shall complete ~~thirty (30)~~
20 ~~hours of continuing education per three-year cycle~~
21 ~~commencing at the date of recognition~~ as directed by the
22 Supreme Court;

23 3. The sum of Two Thousand Dollars (\$2,000.00) per year,
24 payable monthly, to any official court reporter who ~~is~~ holds a

1 certification as a Registered Diplomat Reporter (RDR), as recognized
2 by the State Board of Examiners of Certified Shorthand Reporters,
3 and who completes thirty (30) hours of continuing education per
4 three-year cycle commencing at the date of recognition National
5 Court Reporters Association;

6 4. The sum of Two Thousand Dollars (\$2,000.00) per year,
7 payable monthly, to any official court reporter who ~~is a~~ holds one
8 or more of the following certifications:

9 a. Certified Realtime Reporter (CRR), as recognized by
10 the ~~State Board of Examiners of Certified Shorthand~~
11 ~~Reporters, and who completes thirty (30) hours of~~
12 ~~continuing education per three-year cycle commencing~~
13 ~~at the date of recognition National Court Reporters~~
14 ~~Association, or~~

15 b. Realtime Verbatim Reporter Master (RVR-M) or Realtime
16 Verbatim Reporter Master Stenotype (RVR-M-S), as
17 recognized by the National Verbatim Reporters
18 Association; or

19 5. Any official court reporter who is the holder of more than
20 one certification shall be compensated in the additional amounts
21 specified in paragraphs 1 through 4 of this subsection for each
22 certification up to a maximum of Eight Thousand Dollars (\$8,000.00)
23 per year over and above the reporter's base salary, payable monthly.

1 E. In the event of a lapse in a court reporter's certification,
2 compensation for that certification as provided for in subsection D
3 of this section which is over and above the court reporter's salary
4 shall be suspended until the certification is renewed or reinstated.
5 Compensation shall not be due to a court reporter for any period
6 during which the court reporter's certification was not in good
7 standing.

8 F. Court reporters temporarily employed by the district court,
9 Workers' Compensation Court of Existing Claims, or Corporation
10 Commission shall be compensated by the court fund of the court which
11 they serve at a rate to be set by such court. In addition, court
12 reporters temporarily employed pursuant to this subsection who are
13 required by the terms of their employment to travel outside their
14 county of residence shall receive reimbursement for mileage actually
15 and necessarily traveled to and from the place of attendance at a
16 rate not to exceed the rate of reimbursement specified in the State
17 Travel Reimbursement Act for state employees. Any travel
18 reimbursement shall be paid from the court fund of the court where
19 the service of the temporarily employed court reporter is provided.

20 SECTION 3. AMENDATORY 20 O.S. 2021, Section 1503, is
21 amended to read as follows:

22 Section 1503. A. Every applicant who seeks to be examined for
23 enrollment as a certified shorthand reporter shall prove to the
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1 satisfaction of the State Board of Examiners of Certified Shorthand
2 Reporters that he or she:

- 3 1. Is of legal age;
- 4 2. Meets the requisite standards of ethical fitness; and
- 5 3. Has at least a high school education or its equivalent.

6 B. The examination for certification in one or more authorized
7 methods of shorthand reporting consists of two parts, designated
8 Part 1 and Part 2 as follows:

9 1. Part 1 consists of the test as authorized by the Supreme
10 Court consisting of the following requirements: demonstrated
11 proficiency in reporting testimony and proceedings at a speed of not
12 more than two hundred (200) words per minute in taking a question-
13 and-answer type dictation and at a speed of not more than one
14 hundred eighty (180) words per minute in taking literary materials
15 which shall be designed to test the ability of an applicant to
16 accurately prepare a transcript of testimony and proceedings that is
17 reasonably free from spelling errors. The Board may not increase or
18 decrease such minimum speed requirement, by rule or otherwise; and

19 2. Part 2 is the Oklahoma Written Knowledge test which consists
20 of not less than twenty-five multiple choice questions relating to
21 Oklahoma law and court rules, duties of certified shorthand
22 reporters, and general court procedure. The examination shall be
23 approved by the Supreme Court. A person who has tested with the
24 Board and successfully completed the written knowledge portion of

1 the examination shall be allowed to retain the credit for that
2 portion for two (2) years from the date passed, and shall not be
3 required to retake that portion during the two-year period.

4 C. An applicant who is academically dishonest when taking any
5 authorized examination is disqualified and may not take the
6 examination again until two (2) years have elapsed from the date of
7 the examination at which the applicant was disqualified.

8 D. A certification issued under this section must be for one or
9 more of the following methods of shorthand reporting:

10 1. ~~Written shorthand;~~

11 ~~2.~~ Machine shorthand;

12 2. Steno-mask shorthand; or

13 3. Any other method of shorthand reporting authorized by the
14 Supreme Court.

15 E. No person may engage in shorthand reporting in this state
16 unless the person is a licensed or certified shorthand reporter or
17 otherwise authorized by law or the Supreme Court.

18 SECTION 4. AMENDATORY 20 O.S. 2021, Section 125, as last
19 amended by Section 4, Chapter 316, O.S.L. 2025 (20 O.S. Supp. 2025,
20 Section 125), is amended to read as follows:

21 Section 125. A. In all counties of the state, there is created
22 the office of secretary-bailiff for district judges and associate
23 district judges, and a secretary-bailiff for business court judges,
24 with each such secretary-bailiff to be appointed by order of the

1 district judge, associate district judge, or business court judge to
2 serve at the will of the appointing judge. The Chief Justice of the
3 Supreme Court shall approve by administrative directive the number
4 and assignments of secretary-bailiffs in all counties of the state.
5 Each secretary-bailiff shall be paid a salary pursuant to the salary
6 schedule established by the annual appropriation for the district
7 courts and in accordance with the job description for the position
8 to which appointed. For fiscal year ~~2023~~ 2027 and each fiscal year
9 thereafter, each secretary-bailiff shall receive an annual salary of
10 ~~Forty-two Thousand Dollars (\$42,000.00)~~ Sixty Thousand Dollars
11 (\$60,000.00). In each business court division, the business court
12 judge may appoint a law clerk, who shall be an attorney licensed or
13 eligible to become licensed to practice law in this state, to serve
14 at the will of the appointing judge with an annual salary to be set
15 by the Chief Justice.

16 In every county of the state, each district judge and each
17 associate district judge, including business court judges in
18 counties with a business court division, may by order appoint
19 additional necessary court personnel subject to the approval of the
20 Chief Justice. A part-time bailiff shall be paid out of the court
21 fund of the county where appointed at the rate set by administrative
22 directive for each hour that such person actually attends the court
23 and performs services, or a pro rata fraction thereof for less than
24 an hour of service. Notwithstanding any other provision of law,

1 each district judge and associate district judge may contract with
2 the sheriff of the county to allow a deputy sheriff to provide
3 bailiff service to the court.

4 B. With the approval of the presiding judge, a special judge
5 may appoint a secretary-bailiff or other personnel in accordance
6 with the administrative order of the Chief Justice.

7 C. No judge shall engage more than one full-time secretary-
8 bailiff at any given time except only during the progress of a jury
9 trial, when a part-time bailiff may be engaged subject to the
10 approval of the Chief Justice. In the latter event, no more than
11 one additional bailiff shall be engaged to take charge of the jury.
12 The costs of meals and lodging of bailiffs ordered to keep a jury
13 together during the process of a trial or after the jury retires for
14 deliberation shall be lawfully paid from the court fund.

15 D. A district judge who sits regularly in more than one county
16 may employ only one full-time secretary-bailiff in the judicial
17 district of the judge, and in any other county of the district the
18 judge may engage a bailiff only on a part-time basis when such judge
19 sits in the county as a judge pursuant to the procedures set forth
20 by the Chief Justice in the administrative directive. The cost of
21 the operation of the office of a district judge of a multi-county
22 judicial district, including the purchase of equipment and supplies,
23 may be apportioned among the counties of that judicial district, or
24

1 appropriate division of that district, based upon the percentage of
2 revenue collected by the courts of the district.

3 E. The Administrative Director of the Courts shall develop and
4 promulgate job descriptions, salary schedules and time-keeping forms
5 for part-time bailiff personnel. The Chief Justice of the Supreme
6 Court, through the Office of the Administrative Director of the
7 Courts, shall promulgate rules for the compensation for overtime for
8 all secretary-bailiff and part-time bailiff personnel employed.

9 F. Persons employed by a county that does not meet the
10 requirements of Section 951 of Title 19 of the Oklahoma Statutes,
11 and who serve as full-time secretary-bailiffs or full-time bailiffs
12 shall be eligible to participate in the state retirement system and
13 state insurance programs and any other benefits as are provided to
14 state employees in the unclassified service. All part-time bailiff
15 personnel shall be compensated by the local court fund.

16 G. On October 1, 1989, the position of full-time bailiff shall
17 be redesignated as the position of secretary-bailiff in accordance
18 with the job descriptions, salary schedules, and procedures approved
19 by the Chief Justice. Additional secretary-bailiff positions shall
20 be created as funding and employee positions are available.
21 Counties shall be allowed to provide additional support personnel to
22 the judges sitting in such counties to the extent that funding is
23 available.

1 H. Any secretary-bailiff who is certified by the Council on Law
2 Enforcement Education and Training (CLEET) as a basic peace officer
3 shall have and exercise all the powers and authority of a peace
4 officer. The Office of the Administrative Director of the Courts
5 shall promulgate rules which prescribe the duties for all CLEET-
6 certified secretary-bailiffs. The provisions of this subsection
7 ~~will~~ shall not entitle a CLEET-certified secretary-bailiff to
8 participate in the Oklahoma Police Pension and Retirement System.

9 SECTION 5. This act shall become effective November 1, 2026.

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